

August 18, 2017



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 16523
(FIRST REVISION)

EXPIRATION DATE: 2021-07-31

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: FIBA Technologies, Inc.
Littleton, MA
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the manufacture, mark, sale and use of certain DOT specification 3-Series cylinders/tubes, UN pressure receptacles, and Multi-Element Gas Containers (MEGCs) without pressure relief devices. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with consumer use, use as a component of a transport vehicle or other device, or other uses not associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 173.301(f), 173.301(g), and 173.312(a)(2) in that DOT specification cylinders, UN pressure receptacles, and MEGCs must be equipped with pressure relief devices, except as specified herein.

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5. BASIS: This special permit is based on the application of FIBA Technologies, Inc. dated July 28, 2017, submitted in accordance with § 107.109.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Material Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Hydrogen chloride, anhydrous	2.3	UN1050	Hazard Zone C

7. SAFETY CONTROL MEASURES:

a. PACKAGING -

(1) Prescribed packagings are specification DOT 3-Series cylinders/tubes (specification DOT 3A, 3AA, 3AX, 3AAX, and 3T), UN pressure receptacles built in accordance with ISO 11120, and Multi-Element Gas Containers (MEGCs) that are authorized for the transportation in commerce of the compressed gas listed in paragraph 6.

(2) The cylinders/tubes must meet all requirements of the applicable specifications except that they are not required to be equipped with pressure relief devices (PRDs) as prescribed in §§ 173.301(f), 173.301(g), and 173.312(a)(2). Additionally, each DOT specification cylinder/tube must have a marked service pressure of at least 1,800 psig.

b. REQUALIFICATION - Each cylinder/tube and UN pressure receptacle must be requalified for use at least once every five years in accordance with §§ 180.209 and 180.207 as prescribed for the applicable specification (DOT 3A, 3AA, 3AX, 3AAX, 3T, or UN pressure receptacles), and in accordance with 180.217 for MEGCs.

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c. OPERATIONAL CONTROLS -

(1) Each DOT specification cylinder/tube may be charged to a maximum filling density of 65% in accordance with § 173.304a for anhydrous hydrogen chloride.

(2) Each UN pressure receptacle built in accordance with ISO 11120 may be charged to the maximum filling ratio as prescribed on § 173.304b and Table 2 of P200 of the UN Recommendations.

(3) Emergency response information provided with the shipment and available via an emergency response telephone number must indicate that the cylinders/tubes and UN pressure receptacles are not fitted with pressure relief devices and provide appropriate guidance in case of fire.

d. MARKING - Each cylinder/tube must be marked as follows:

(1) The exterior of the trailer cabinet of the vehicle chassis to which the cylinders/tubes are affixed must be marked with letters at least 2 inches high on a contrasting background "DOT-SP 16523".

(2) Each cylinder/tube not affixed in a vehicle chassis (stand-alone cylinders) must be marked with "DOT-SP 16523" in addition to the specification marking.

8. SPECIAL PROVISIONS:

a. In accordance with the provisions of Paragraph (b) of § 173.22a, persons may use the packaging authorized by this special permit for the transportation of the hazardous materials specified in paragraph 6, only in conformance with the terms of this special permit.

b. A person who is not a holder of this special permit, but receives a package covered by this special permit, may reoffer it for transportation provided no modification or change is made to the package and it is offered for transportation in conformance with this special permit and the HMR.

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- c. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.
- d. Each packaging manufactured under the authority of this special permit must be either (1) marked with the name of the manufacturer and location (city and state) of the facility at which it is manufactured or (2) marked with a registration symbol designated by the Office of Hazardous Materials Safety Approvals and Permits Division for a specific manufacturing facility.
- e. A current copy of this special permit must be maintained at each facility where the packaging is manufactured under this special permit. It must be made available to a DOT representative upon request.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, and cargo vessel.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo vessel or motor vehicle used to transport packages covered by this special permit.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

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No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—"The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

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Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: Teresa D'Onfro